



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

MAY 18 1992

DOT-E 8207
(FOURTH REVISION)

1. Fel-Pro Inc., Commerce City, Colorado (formerly Chem Rex Inc.) is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of certain caustic alkali liquids, classed as corrosive materials for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes shipment of certain caustic alkali liquids, in a one-quart tin can, placed in a molded polyethylene liner, overpacked in a modified 28-gage, unlined DOT Specification 37A two-gallon drum, also containing a nonhazardous resin mix, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Chem Rex's application dated February 2, 1992, submitted in accordance with 49 CFR 107.105 and Fel-Pro Inc.'s supplemental letter dated April 6, 1992.

3. HAZARDOUS MATERIALS (Descriptor and class). Caustic alkali liquids, n.o.s., classed as corrosive materials.

4. PROPER SHIPPING NAME (49 CFR 172.101). Caustic alkali liquid, n.o.s.

5. REGULATION AFFECTED. 49 CFR 172.101, 171.12(b), 173.245(a)(17), 175.3, 178.131.

6. MODES OF TRANSPORTATION. Motor vehicle, rail freight, cargo vessel and cargo-aircraft only.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a modified DOT Specification 37A, unlined, 28-gauge steel pail of two-gallon capacity, used as an overpack and into which is placed the nonhazardous resin mix. A molded polyethylene (PE) liner designed to fit on the lip of the pail is fitted into the pail and a one-quart can containing the corrosive material (hardener mix) is placed in the PE liner, the PE liner thus supporting the can. The lug cover lid is then placed on the pail and crimped closed.

The pail is shipped either individually, or shrink-wrapped, stretch-wrapped, banded or by an equivalent method of unitization to pallets.

8. SPECIAL PROVISIONS.

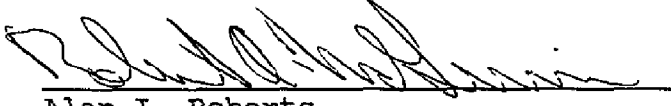
a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. A copy of this exemption must be carried aboard each vessel and aircraft used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. February 28, 1994.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAY 18 1992
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: USCG, FAA, FHWA, FRA.



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DOT-E 8207 (EXTENSION)
THIRD REVISION December 21, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8207 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to February 28, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAR 23 1992

(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

ChemRex, Inc.
Commerce City, CO

February 2, 1992